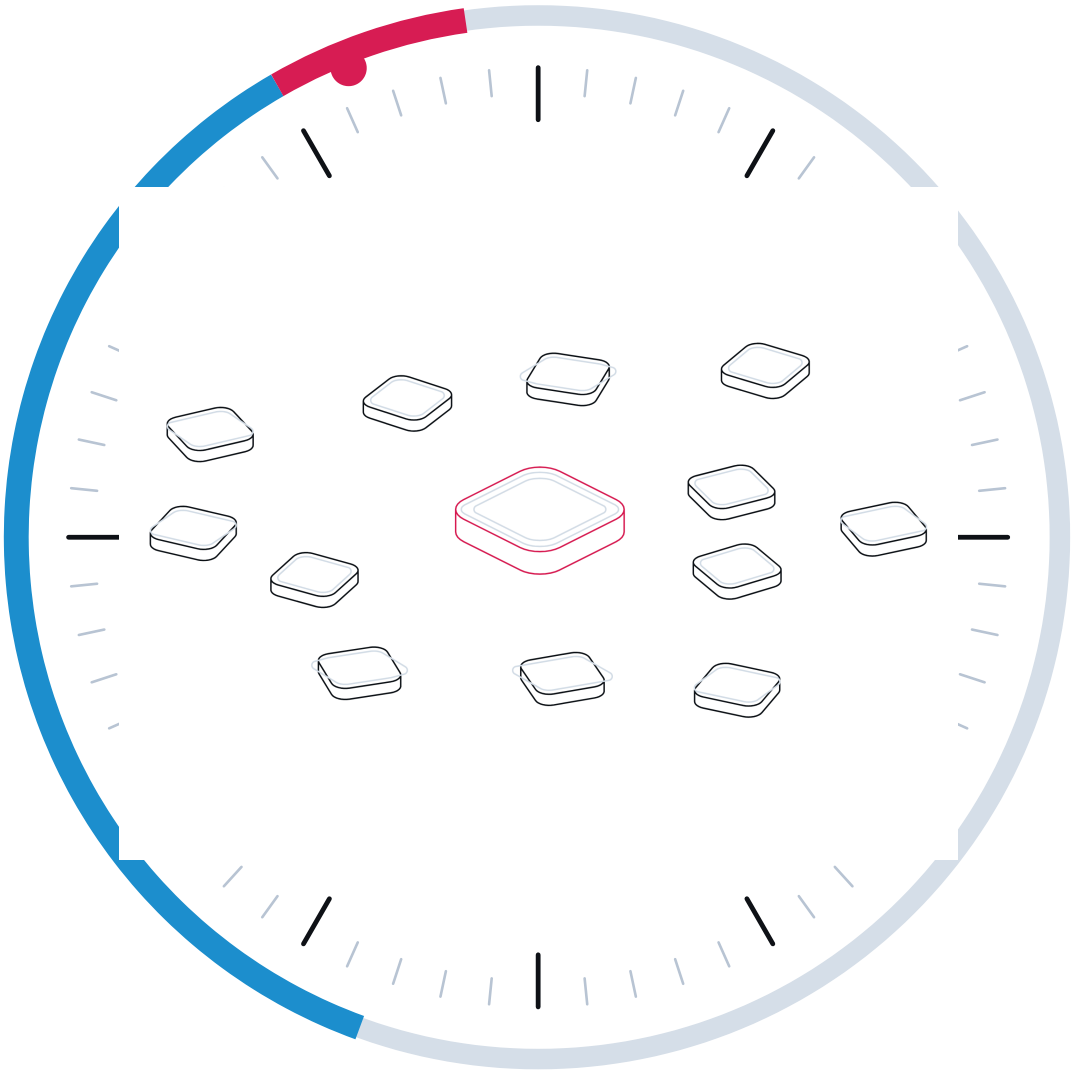


HOSPITALITY · INTELLIGENCE REPORT

The protect duty.

Martyn's Law, the Manchester Arena Inquiry and the first minutes of an attack. What the evidence shows for UK hotels, bars, pubs, restaurants and venues, and what to do before the duties begin.

INSIDE

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An evidence-based look at Martyn's Law and what it means for hotels, pubs, bars, restaurants and venues: what the Act requires and when, what the Manchester Arena Inquiry and the London Bridge inquests found about the first minutes, and what hospitality leaders should do now.

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EXECUTIVE SUMMARY

Martyn's Law is mostly about people and procedures, and hospitality is at the heart of it.

The Terrorism (Protection of Premises) Act 2025 received Royal Assent on 3 April 2025.[1] It will require the people in control of qualifying premises, including bars, pubs, restaurants, cafés, hotels and nightclubs, to take steps to protect the public from terrorism.[1,2] Premises where 200 to 799 people can reasonably be expected at the same time fall into the standard tier, and those with 800 or more into the enhanced tier.[3] The Security Industry Authority (SIA) will regulate, and expects the Act to come into force in spring 2027; no date has yet been set.[4,5]

When the Bill was assessed in 2024, the Home Office estimated around 154,600 standard tier and 24,300 enhanced tier premises, and the Regulatory Policy Committee noted that the large majority are in the retail and hospitality sectors.[6]

The evidence behind the law points to communication and preparation as much as physical security. The Manchester Arena Inquiry found that a concern about the attacker did not reach anyone who could act on it, and that on the night the emergency plans "were not known by everyone who should have known about them".[7,8] At London Bridge and Borough Market, where attackers entered bars and restaurants, all eight people who died did so within 15 minutes of the attack beginning.[9]

This report sets out what the Act requires and when, what the inquiries found, and the practical steps for UK hospitality leaders before the duties begin.

THE BOTTOM LINE

Do not wait for commencement. Count your peak numbers, write the four procedures, name a decision maker on every shift and make sure one alert reaches every member of staff, then rehearse it before the festive peak.

KEY FINDINGS

Seven things the evidence tells us

01 **The law is enacted, but not yet in force.**

Royal Assent was on 3 April 2025, with an implementation period of at least 24 months. The SIA expects commencement in spring 2027 and will confirm the date ahead of time.[1,3,4]

02 **Hospitality is at the centre of the duty.**

Statutory guidance names bars, pubs, restaurants, cafés, hotels and nightclubs among the uses in scope, and most estimated premises are in retail and hospitality.[2,6]

03 **For most venues, it is about procedures, not kit.**

Standard tier premises need evacuation, invacuation, lockdown and communication procedures so far as is reasonably practicable; the Act does not require physical alterations or equipment.[10]

04 **Plans fail when the people on shift do not know them.**

The Manchester Arena Inquiry found that plans were not known, not always clear, not always understood and not always put into practice.[8]

05 **Communication breaks at single points.**

A concern passed between stewards stalled on a busy radio channel, and a police declaration of Operation Plato was not passed to the other emergency services.[7,8]

06 **The first minutes are decided on site.**

At London Bridge and Borough Market the attack lasted about ten minutes, and all eight victims died within 15 minutes of it beginning.[9]

07 **The same capability covers likelier emergencies.**

Police received 6,732 spiking reports in a year, 80% in night-time economy venues; cyber incidents can take booking channels offline.[11,12]

AT A GLANCE

Martyn's Law and hospitality, in six figures

Each figure is sourced. The premises estimates are from the 2024 impact assessment and may change.

3 April 2025

Royal Assent for the Terrorism (Protection of Premises) Act 2025.[1]

200 and 800

People who can reasonably be expected at once, including staff, that mark the standard and enhanced tiers.[3]

154,600

Estimated standard tier premises, alongside 24,300 enhanced tier, mostly retail and hospitality.[6]

£18m or 5%

Maximum penalty for enhanced duty premises, of worldwide revenue. Standard duty: up to £10,000.[13]

149

Recommendations in Volume 2 of the Manchester Arena Inquiry, on the emergency response.[8]

6,732

Spiking reports to police from May 2022 to April 2023, 80% of them in night-time economy venues.[11]

TIMELINE

From Manchester to commencement

Key dates. The commencement date has not yet been set.

22 May 2017

Manchester Arena attack

22 people are killed at the end of a concert.[4]

3 June 2017

London Bridge and Borough Market

Attackers move through a restaurant courtyard, bars and a restaurant; eight people are killed.[9]

17 June 2021

Inquiry Volume 1

Security arrangements at the Arena; the chair sets out key elements of a Protect Duty.[7]

6 September 2022

IHG booking systems disrupted

The hotel group discloses unauthorised activity that significantly disrupted booking channels and apps.[12]

3 November 2022

Inquiry Volume 2

The emergency response, with 149 recommendations.[8]

3 April 2025

Royal Assent

The Terrorism (Protection of Premises) Act 2025 becomes law.[1]

15 April 2026

Statutory guidance

Home Office guidance is laid; the SIA consults on its own guidance until 12 June.[2,4,14]

14 July 2026

Notification rules

Guidance sets three months from commencement for premises to notify the SIA.[15]

Spring 2027

Expected commencement

The SIA's expectation. The date will be set by statutory instrument.[4,5]

PART 01

The law.

What the Terrorism (Protection of Premises) Act 2025 requires of hospitality, exactly, and what it does not.

01 What the Act requires

02 Two tiers compared

03 What the duty is, and is not

THE LAW

What the Act requires, and of whom

> **For most hospitality venues, the duty is a set of procedures that every shift can follow.**

The Act's long title describes its purpose: to require persons with control of certain premises or events to take steps to reduce the vulnerability of the premises or event to, and the risk of physical harm to individuals arising from, acts of terrorism, and to confer related functions on the SIA.[1]

It applies to premises wholly or mainly used for purposes in Schedule 1. Statutory guidance says the food and drink use "includes bars, pubs, restaurants, cafés and food halls", the hotels use includes hostels and holiday parks, and nightclubs sit under entertainment and leisure.[2] The Home Office's own examples include a pub with a beer garden and a hotel with grounds used for dining and events.[3]

Tier depends on numbers. Premises are in the standard tier where 200 or more people, including staff, can reasonably be expected to be present at the same time from time to time, and in the enhanced tier at 800 or more.[3] Qualifying events have an 800-person threshold and further conditions.[3]

Standard tier premises must notify the SIA and have, so far as is reasonably practicable, appropriate public protection procedures: evacuation, invacuation, lockdown and communication.[10] The Home Office describes these as simple, low-cost steps.[3] There is no statutory training requirement, but staff with responsibilities must know the procedures and their roles.[10]

Enhanced tier premises must also have public protection measures relating to monitoring, movement, physical safety and security, and security of information; document compliance and give the document to the SIA; and, where the responsible person is an organisation, designate a senior individual.[16]

The SIA will assess compliance through desk-based assessments and inspections, usually with at least 72 hours' notice.[4] Penalties reach £10,000 for standard duty premises and £18m or 5% of worldwide revenue for enhanced duty premises, with daily penalties for continued failure.[13]

TWO TIERS

Standard and enhanced tier, side by side

As stated in Home Office factsheets and guidance. Status as at 9 November 2026.

	STANDARD TIER	ENHANCED TIER
Threshold	200 to 799 people reasonably expected at once, including staff.[3]	800 or more people reasonably expected at once.[3]
Core duty	Public protection procedures: evacuation, invacuation, lockdown, communication.[10]	Procedures plus public protection measures on monitoring, movement, physical security and information.[16]
Paperwork	Notify the SIA within three months of commencement; changes within 28 days.[15]	Notify the SIA; document compliance and send it to the SIA; name a senior individual.[15,16]
Penalties	Up to £10,000; up to £500 a day for continued failure.[13]	£18m or 5% of worldwide revenue; up to £50,000 a day; restriction notices.[13]
Status	Not yet in force. Expected spring 2027.[4]	Not yet in force. Expected spring 2027.[4]

COMMON MISREADINGS

What the duty is, and what it is not

Several claims about Martyn's Law circulate in the trade. This is what the official sources say.

CLAIM	WHAT IS OFTEN ASSUMED	WHAT THE SOURCES SAY
Timing	The law is already in force, or starts on a fixed date in April 2027.	It is not yet in force. The SIA expects spring 2027; the date will be set by statutory instrument.[4,5]
Equipment	Every venue must buy barriers, scanners or new locks.	Standard tier premises are not required to make physical alterations or buy equipment.[3,10]
Training	Staff must complete a specific accredited course.	There is no statutory training requirement, but staff must know the procedures and their role.[10]
Who counts	Only seated customers count towards the threshold.	The numbers include staff, and are those reasonably expected at the same time from time to time.[3]
Who is responsible	The security contractor carries the duty.	The responsible person is whoever controls the premises for the use that brings them into scope.[2]
Guidance	There is nothing to read until the law starts.	Statutory guidance has been in force since 10 April 2026, with factsheets and notification guidance published.[2,14,15]

PART 02

The lessons.

What the Manchester Arena Inquiry and the London Bridge inquests found about the minutes that matter most.

01 Manchester Arena: plans and messages

02 Four ways communication failed

03 Bars, restaurants and the first 15 minutes

MANCHESTER ARENA

Manchester Arena: when the plan and the message do not reach people

> **The concern was raised in time. It did not reach anyone who could act on it.**

On 22 May 2017, 22 people were killed in the attack at the end of a concert at Manchester Arena.[4] The public inquiry reported in three volumes. Volume 1, published on 17 June 2021, found that the security arrangements should have prevented or minimised the devastating impact of the attack, and failed to do so.[7]

One finding is directly relevant to every venue. A member of the public raised a concern about the attacker with a steward around 15 minutes before the concert ended. The steward had no radio. A colleague with a radio tried to report it, but someone else was talking on the channel, and the concern went no further. The inquiry found the efforts made were inadequate, and that there had been enough time to investigate and act.[7]

Volume 2, published on 3 November 2022, examined the emergency response and made 149 recommendations.[8] It found that significant aspects of the response went wrong. The police declaration of Operation Plato, the response to a suspected marauding terrorist attack, was not communicated to the other emergency services as the police plan required, and the fire service did not arrive until over two hours after the attack.[8]

Its conclusion on planning applies far beyond the emergency services: plans "were not known by everyone who should have known about them", were not always clear, not always understood and not always put into practice.[8] It also found single points of failure, and called for checks to make sure that what needed to be done had been done.[8]

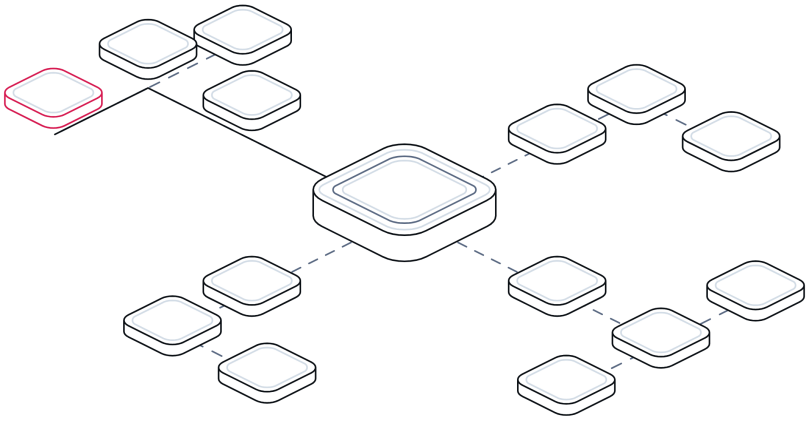
The inquiry recorded that venue staff acted quickly: the head of security instructed staff to divert people away from the scene, and a radio message asked staff with first aid skills to go there.[8] It also called for more members of the public to have first responder skills.[8]

Volume 1 explicitly anticipated a Protect Duty, an obligation for those responsible for publicly accessible locations to consider and implement security measures.[7] Martyn's Law is that duty.

HOW IT FAILS

Four ways communication fails on the night

Drawn from the Manchester Arena Inquiry. Each has a direct equivalent in a busy bar, hotel or restaurant.



01 **No device, no route**

A steward without a radio had to find someone who had one.[7]

02 **A busy channel**

A radio report could not get through because someone else was talking, and was not escalated another way.[7]

03 **A declaration not shared**

A critical declaration was not passed to partners who needed it, as the plan required.[8]

04 **Plans not known**

Responders on the night had little or no knowledge of the plans that applied to them.[8]

BARS AND RESTAURANTS

Bars, restaurants and the first 15 minutes

> **Before police arrive, what happens inside depends on the staff on shift.**

On the evening of 3 June 2017 three attackers drove a van into pedestrians on London Bridge, crashed outside a pub and then attacked people at street level, in a restaurant courtyard and in bars and a restaurant on Stoney Street. Armed officers stopped them about ten minutes after the attack began.[9]

The Chief Coroner found that the emergency operation was generally well managed, and that all eight people who died had suffered injuries that could not have been treated at the scene and died within 15 minutes of the attack beginning.[9] He also recorded police evidence that a clear legal duty on private site owners would help, contrasting the extensive health and safety duties to visitors with the lack of any comparable duty to protect from terrorism.[9]

For hospitality, the lesson is about time. Before police arrive, what happens inside a bar or restaurant depends on staff: whether they recognise what is happening, lock the doors, move guests away from the entrance and tell everyone on site.

Terrorism is, thankfully, rare. Other emergencies are not. The Home Office reported 6,732 police reports of spiking between May 2022 and April 2023, 80% of them in night-time economy venues and almost half in bars.[11] The Crime and Policing Act 2026 includes a new offence of administering a harmful substance, including by spiking; it is not yet in force.[17,18]

Technology failures reach the front desk too. In September 2022 IHG told the stock exchange that unauthorised activity had significantly disrupted its booking channels and apps.[12] A booking or payment outage on a December Saturday is a crisis of a different kind, but it needs the same things: one decision maker, one instruction to every site and confirmation that it has been read.

PART 03

What to do now.

What the evidence means for UK organisations in hospitality, and the steps that close the gap before the duties begin.

01 What it means for UK hospitality

02 Seven recommendations

03 Questions for the board

UK RELEVANCE

What it means for UK organisations in Hospitality

> A plan that works on a quiet weekday may not work on the last Saturday before Christmas.

Most hospitality businesses with a busy bar, restaurant, hotel or function room will be in scope of Martyn's Law, and most will be in the standard tier. The duties are not yet in force, but the guidance is published, the notification rules are set and the SIA expects commencement in spring 2027.[2,4,15]

The standard tier is deliberately modest: procedures, not equipment.[3,10] That makes it achievable, and it also puts the weight on the hardest thing in hospitality: getting a varied, often temporary workforce to know what to do on a noisy, crowded night. The Home Office's restaurant example relies on a shift manager who enacts the procedures and an induction briefing for every new starter.[10]

The inquiries show where that breaks. Concerns that do not reach a decision maker. Channels that are busy at the moment they are needed. Plans that exist but are not known.[7,8] Each of these has a practical fix: a named decision maker on every shift, more than one way to raise and send an alert, and a way to confirm who has received it.

The festive season is the sharpest test. Venues are fuller, shifts are longer, many staff are new or temporary, and guests are spread across function rooms, terraces and bedrooms. A plan that works on a quiet weekday may not work on the last Saturday before Christmas.

The same capability serves every emergency. A venue that can lock down and tell every member of staff within a minute can also run a fire evacuation, respond to a spiking report or move to a paper booking list when systems fail. Building it now is good practice whatever the commencement date.

RECOMMENDATIONS

Seven steps before the duties begin

In priority order. Most cost time, not money.

01 **Count peak numbers for every site**

Include staff and outside areas, and record the method.[3,15]

02 **Name the responsible person**

And a senior individual for enhanced tier premises.[2,16]

03 **Write the four procedures, one page per site**

Each with routes, safe areas and named roles.[10]

04 **Give every shift a decision maker**

A duty manager who can declare a lockdown at once, known to all staff.

05 **Make one alert reach everyone, and confirm it**

More than one channel, with replies tracked and non-responders chased.[7]

06 **Brief every starter, including seasonal staff**

A short induction on the procedures and their own role.[10]

07 **Rehearse before the festive peak**

A lockdown walk-through on a late shift, and a head office exercise.

FOR THE BOARD

Questions boards should ask this quarter

Answers should be specific, dated and owned.

THE DUTY

- ? Which of our sites are likely to be standard tier and which enhanced, and how did we count?
- ? Who is the responsible person for each site, and who is our senior individual?
- ? Are we ready to notify the SIA within three months of commencement?

THE NIGHT

- ? Could every site evacuate, invacuate, lock down and communicate tonight, and when was it last practised?
- ? How long would it take to reach every member of staff on duty, and to know who had not replied?
- ? Are seasonal and agency staff briefed to the same standard as permanent staff?

GLOSSARY

Terms used in this report

Martyn's Law

The Terrorism (Protection of Premises) Act 2025, named after Martyn Hett, who was killed at Manchester Arena.

Protect Duty

The proposal, discussed in the Manchester Arena Inquiry, that became Martyn's Law.

Responsible person

Whoever controls qualifying premises for the use that brings them into scope.

Standard and enhanced tier

Premises where 200 to 799, or 800 or more, people can reasonably be expected at once.

Public protection procedures

Evacuation, invacuation, lockdown and communication.

Public protection measures

Enhanced tier measures on monitoring, movement, physical security and information.

Invacuation

Moving people away from danger to a safer place inside the premises.

Reasonably practicable

Proportionate: weighing what a step achieves against its cost, time and difficulty.

SIA

The Security Industry Authority, regulator for Martyn's Law.

Commencement

The date a provision of an Act comes into force, set by statutory instrument.

Prospective

A provision that is law but not yet in force.

Operation Plato

In 2017, the emergency services' designation for the response to a marauding terrorist firearms attack.

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